



Delivered by the
National Disability
Insurance Agency

GPO Box 700
CANBERRA ACT 2601

1800 800 110

[ndis.gov.au](https://www.ndis.gov.au)

Our reference: PID 2023/Krypton
Ombudsman's reference: Not applicable

Dr Richard McLean

By email: richarddrawsstuff@gmail.com

Private and Confidential

Dear Dr McLean

Potential public interest disclosure

I am an authorised officer for the purposes of the *Public Interest Disclosure Act 2013* (**PID Act**). I am writing to you about your emails dated 18 and 20 April 2023 that were sent to PID@ndis.gov.au.

The purpose of this letter is to:

- give you information about public interest disclosures and the PID Act
- ask you for information about the concerns raised in your emails
- ask you for your consent to disclose your name and contact details.

Public interest disclosures

Public officials who suspect wrongdoing in the Commonwealth public sector can raise their concerns under the PID Act. An allegation made under the PID Act is a public interest disclosure. This is also sometimes called 'whistleblowing'.

All Australian Government agencies, including the National Disability Insurance Agency (**NDIA**), have responsibilities under the PID Act to investigate public interest disclosures that are allocated to them. The PID Act says that a disclosure must be allocated to an agency if:

- the discloser is a public official
- the disclosure was made to an authorised internal recipient
- the information disclosed tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct.

The PID Act also says that authorised officers can ask for more information to help them decide whether to allocate a disclosure to an agency.

Your disclosure

Public official

I understand from your emails that you think that you are a 'public official' for the purposes of the PID Act. The PID Act says that a 'public official' includes:

- Commonwealth public servants who work in Departments, executive agencies and prescribed authorities
- members of the Australian Defence Force
- appointees of the Australian Federal Police
- Parliamentary Services employees
- directors and staff members of a Commonwealth company
- statutory office holders
- any other person who exercises powers under a Commonwealth law
- people who are contracted service providers for a Commonwealth contract
- people who are officers or employees of contracted providers for a Commonwealth contract and who provide services for the purposes of that contract
- people who are subcontractors to a person who is a contracted service provider for a Commonwealth contract and who provide services for the purposes of that Commonwealth contract.

From your emails, I am not sure whether you are a public official for the purposes of the PID Act. To help me to assess your emails under the PID Act, I am asking you to tell me more about how you are a public official for the purposes of the PID Act. You can do this by telling me which of the above types of public official you are.

Disclosable conduct

I understand from your emails that you think that the information in your emails tends to show one or more instances of disclosable conduct. The PID Act says that disclosable conduct is conduct within an Australian Government agency or by a public official that:

- contravenes a Commonwealth, state or territory law
- occurred in a foreign country and contravenes a foreign law that applies to the agency, official or service provider
- perverts the course of justice
- is corrupt
- constitutes maladministration, including conduct that is based on improper motives or is unreasonable, unjust, oppressive or negligent
- is an abuse of public trust
- involves fabrication, falsification, plagiarism or deception relating to scientific research, or other misconduct in relation to scientific research, analysis or advice
- results in wastage of public money or public property
- unreasonably endangers health and safety
- endangers the environment
- is prescribed by the *Public Interest Disclosure Rules 2019*.

The PID Act also says that disclosable conduct includes conduct by a public official that:

- involves or is engaged in for the purposes of abusing their position as a public official
- could give reasonable grounds for disciplinary action against the public official.

Because of the amount of information you have sent me, I am not sure which information in your emails you think tends to show disclosable conduct. At **Attachment A**, I have set out my understanding of your concerns. I am asking you to tell me if the information in **Attachment A** is correct. It would also help me if you could give me more specific information, including the names of any people who you have concerns about and the dates that you say the things in your emails happened.

Your consent

If I decide to allocate your disclosure to an agency for investigation, I must give the principal officer of that agency and the Ombudsman certain information about your disclosure, including the information that was in your email. If you give your consent, I must also give the principal officer and the Ombudsman your name and contact details.

I have included a consent form at **Attachment B** for you to read, complete and return.

Request for information

To help me to assess your emails under the PID Act, I am asking you to:

- tell me how you are a public official for the purposes of the PID Act
- tell me if **Attachment A** is correct
- complete and return the form at **Attachment B**

by **9 May 2023**.

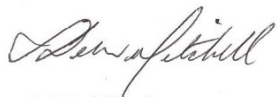
If I do not hear from you by this date, I will assess your concerns based on the information I have. I will also assume that you do not want me to disclose of your name and contact details to the principal officer of the relevant agency and the Ombudsman.

Further assistance

I am concerned about some of the things that you have said in your emails about your wellbeing. I encourage you to reach out to your support network and, if you feel you need further support to Lifeline Australia (13 11 14).

If you have any questions, please contact PID@ndis.gov.au.

Yours sincerely



Debbie Mitchell
Authorised Officer under the PID Act

2 May 2023

Potential public interest disclosure

Details of disclosure

Date of disclosure: 18 and 20 April 2023

Status of discloser: Unknown

Authorised officer: Debbie Mitchell

Allegations

Allegation 1

On an unspecified date, an unnamed employee of the NDIA working in an NDIS contact centre obtained Dr McLean's address, attended Dr McLean's home and had sex with Dr McLean.

Allegation 2

On an unspecified date or dates, Tony Riddell, a former employee of the NDIA, threatened Dr McLean and doctored NDIS documents.

Allegation 3

Dr McLean and Mr Steve Iasonidis have committed fraud against the NDIA.

Evidence in support of allegation

- Dr McLean provides services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.
- Mr Iasonidis was been employed by the Australia Security Intelligence Organisation.
- While Mr Iasonidis was earning a salary of more than \$30,000 a month, he also received a carer's pension for taking care of Dr McLean.
- Dr McLean fraudulently received money from the NDIS, for the services of Mr Iasonidis, under the line item of 'life coaching'.

Allegation 4

Dr McLean and Mr Iasonidis have committed fraud against Centrelink.

Evidence in support of allegation

- While Mr Iasonidis was earning a salary of more than \$30,000 a month, he also received a carer's pension for taking care of Dr McLean.
- Dr McLean continued to receive a disability pension while he was in a relationship with Mr Iasonidis.

Allegation 5

The NDIA knows of the fraud against the NDIA and Centrelink but have not laid charges.

Allegation 6

The NDIA has framed Dr McLean.

Allegation 7

Ms Ashling Kelly, NDIS Planner in the Complex Support Needs Team, has not allowed Dr McLean opportunity to acquire accommodation.

Evidence in support of allegation

- Ms Kelly intervened to limit Dr McLean's choice and control in the choosing of a support coordinator.
- Due to the intervention of Ms Kelly, Dr McLean has been unable to acquire accommodation.

Consent form

The *Public Interest Disclosure Act 2013* says that an authorised officer must inform the principal officer of the agency that a disclosure is allocated to and the Commonwealth Ombudsman your name and contact details if you give your consent. Giving your consent is voluntary.

You can choose to use your real name, choose to use a pseudonym (assumed name) or choose to remain anonymous. You can also choose to use your usual email address or remain anonymous and use an anonymous email address.

Your consent

Your name: Dr Richard McLean

Your contact details: richarddrawsstuff@gmail.com

Please tick the relevant box or boxes.

- ☐ I consent to the principal officer of the relevant agency and the Commonwealth Ombudsman being informed of
- ☐ my name only.
 - ☐ my contact details only.
 - ☐ my name and contact details.

OR

- ☐ I do not consent to the principal officer of the relevant agency and the Commonwealth Ombudsman being informed of my name or contact details.